

		1229, 1246-1247.) A self-represented litigant is not entitled to any greater consideration than other litigants and attorneys. (<i>Petrosyan v. Prince Corp.</i> (2013) 223 Cal.App.4th 587, 594 [self-represented litigants are entitled to same treatment as represented parties]; see Cal Rules of Court, rule 1.6(15) [defines “parties” as including both self-represented persons and persons represented by an attorney of record without making any distinction between them].) Defendant is ordered to serve notice of this ruling.
2 .	2024- 1396986 Price vs. City of Anaheim	Specially Appearing Defendant National Core’s unopposed motion to quash service of the summons and complaint is GRANTED. “A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of the summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc. § 418.10, subd. (a)(1).) When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, “the burden is on the plaintiff to prove the existence of jurisdiction by proving, <i>inter alia</i>, the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [trial court erred in denying motion to set aside default judgment where plaintiff’s attempted service of process did not substantially comply with requirements for substitute service]; (<i>Lebel v. Mai</i> (2012) 210 Cal.App.4th 1154, 1160 [“It was incumbent upon plaintiff, after the filing of defendant’s motion to quash, to present evidence discharging her burden to establish the requisites of valid service on defendant”].) Here, Defendant presents evidence that it is not a legal entity and therefore does not exist. (Ortiz Decl., ¶¶ 2-3, Exs. A and B.) Because it does not exist, CSC Lawyers Incorporating Service – the company who purportedly accepted service on it’s behalf, could not accept service. (Id. at ¶¶ 5-6, Ex. D.) Thus, no service can be effectuated upon it. Further, as the motion is unopposed, Plaintiff has failed to meet her burden to prove the existence of jurisdiction on this moving defendant. Service of the summons and complaint on National Core, as reflected in the proof of service filed on 9/20/24 under ROA 17 is hereby QUASHED. Lastly, the Court notes that Hermosa Village Apartments has filed a nearly identical motion set for hearing on 1/15/24. The court <u>strongly encourages</u> the parties to work out their differences informally to avoid the necessity for court intervention, which lessens the burden on the Court and reduces unnecessary expenditure of resources by

		litigants. The moving and responding parties are expected to engage in meaningful meet and confer conversations in person or telephone, <i>not through email</i>, within a reasonable time prior to the 1/15/24 hearing. Should the parties resolve the issues presented in the motion, the motion should be taken off-calendar without delay. Specially appearing defendant shall give notice of the ruling.
5	2023-1328556 Martini vs. Mowlavi	Defendants Arian Mowlavi, M.D., Laguna Surgery Institute, LLC, A.M. Cosmetic Surgery Clinics, Inc. and James Gardner seek an order compelling plaintiff Mildred Martini to arbitrate her claims against them is denied. This is an action for medical malpractice and related claims. Plaintiff alleges that Dr. Mowlavi performed procedures without Plaintiff's consent and allowed unlicensed individuals to provide treatment to Plaintiff, resulting in mutilation of her body. [Second Amended Complaint (ROA #92 – "SAC").] Prior to her procedure, Plaintiff signed an arbitration agreement as to any "claim arising out of or related to all treatment or services provided by the physician" [Tredway Decl. (ROA #960), Ex. 1.] Trial is set for 4/1/25. [ROA ## 63, 66.] This action was commenced on 5/26/23. [ROA #2.] Defendants Mowlavi and Laguna were served with Plaintiff's first amended complaint on 6/16/23. [ROA ## 17, 19.] In November 2023 and April 2024, Defendants served discovery, both subpoenas and nonparties and written discovery to Plaintiff. [Hemesath Decl. (ROA #100), Exs. 1, 2.] Defendants also responded to written discovery. [<i>Id.</i>, Exs. 3-4.] Defendants also posted jury fees and participated in CMCs without indicating that they would seek to arbitrate, even when a trial date was set. [<i>Id.</i>, Exs. 5-8.] Fourteen months after appearing in this action, and five months before trial, Defendants filed their motion to compel arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that: